

Bill of rights

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Every elector votes for every seat, wherever they live.
- Every member can ask for records and get an answer in writing.
- Every member can see the budget and the audited statements.
- Nobody gets cut off a program for complaining or for how they voted.
- Every decision about you comes in writing with a way to appeal.

Why this draft is here

A right that depends on who you know isn't a right. This code writes the basics down so every member can point to them.

1. Purpose and authority

- 1.1 This code sets out the rights of every member. It applies on reserve and off reserve.
- 1.2 It is made under the same authority as the constitution.
- 1.3 It adopts the equality rule in Charter subsection 15(1), quoted in the constitution. Charter subsection 15(2) allows a program aimed at improving the conditions of disadvantaged people or groups. A published program may set who is eligible. It must not set eligibility by friendship, by family ties to council, or by where a member lives, unless a statute requires it. If a statute requires it, the decision must quote the statute.

2. The rights

- 2.1 Every elector may vote for all five council seats, whether they live on reserve or off reserve.

Check before a vote

courts have found that limiting the vote to members living on reserve breaks Charter section 15. A custom code that copies that limit carries the same risk. This code does not copy it. If Indian Act section 74 or the First Nations Elections Act applies, that statute controls.

- 2.2 Every elector may run for chief and for the three open councillor seats. An elector who lives off reserve may also run for the off-reserve seat.
- 2.3 Every member may ask for a record under the right to information code and get a written answer within the days set there.
- 2.4 Every member may see the budget, the quarterly statement, the audited consolidated financial statements, and the Schedule of Remuneration and Expenses on the days set in the band money code.
- 2.5 Every member who applies for housing, education support, or a loan gets a written decision with reasons and one appeal.
- 2.6 Every member may report a breach straight to the appeal body, without going through the chief, and may not be punished for a report made in good faith.
- 2.7 Every member may put a written question on council business to council. Council must answer in writing within 30 days and post the answer.
- 2.8 A member may speak at a general meeting in any Indigenous language members use. A translation of an adopted code must be posted within 30 days of a written request from 10 members.
- 2.9 A member must not be refused a program, a posted job interview, or a place on a list because they complained, voted a certain way, or live off reserve. A refusal for one of those reasons is void. The appeal body must order the file reheard by people who did not make the first decision, within 21 days of a complaint.

3. Limits

- 3.1 These rights do not include a right to another member's personal health or student records, a right to a house when none is vacant, or a right to a payment that is not in an adopted budget.
- 3.2 A limit on a right in this code must be written in the code that creates it, name the section, and say how many days apply. A limit given out loud is void.

4. Using a right

- 4.1 A member enforces a right by a written complaint to the appeal body within 60 days of learning of the breach, and not later than one year after it.
- 4.2 The appeal body must decide in writing within 30 days of a complete complaint. If it does not, council honoraria stop on day 31 until the decision is posted.
- 4.3 Nothing in this code removes a right to go to court, including under Charter section 24.

- 4.4 A complaint should say what happened, on what date, and which section applies. The public log shows the outcome, not accusations.

5. Changing this code

- 5.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 5.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 5.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 5.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

6. Review and coming into force

- 6.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 6.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 6.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 6.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 6.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.